

2:00 PM

LINE: 2

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.'S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY THIRD PARTY BALFOUR BEATTY INFRASTRUCTURE INC.

TENTATIVE RULING:

For the reasons stated below, Defendants Peninsula Corridor Joint Powers Board, Transitamerica Services, Inc., and Herzog Transit Services, Inc.'s Motion to Compel Compliance with Subpoena by Balfour Beatty Infrastructure, Inc. is **GRANTED IN PART** and **DENIED IN PART**. Defendants' request for monetary sanctions is **GRANTED IN PART** in the amount of \$1,000.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

MOTION TO COMPEL

On February 19, 2025, Defendants served Balfour Beatty Infrastructure, Inc. ("BBI"), then a nonparty, with a deposition subpoena seeking 17 categories of documents. BBI served objections in March 2025. After several months of meet-and-confer efforts and extensions during which BBI represented that it was searching for and would produce responsive documents, Defendants filed the present Motion on August 7, 2025, when BBI had not produced responsive documents. In October 2025, Defendants filed a Cross-Complaint naming BBI as a cross-defendant.

In August 2026, after becoming a party, BBI served Amended Responses to the subpoena and represented that it had produced all responsive, nonprivileged documents within its possession, custody, or control or, as to certain requests, that responsive documents could not be located or no longer existed. BBI contends that its subsequent production renders the Motion moot and that Defendants must now proceed exclusively through party discovery.

The Court is not persuaded that BBI's subsequent joinder as a party divested the Court of authority to rule on a motion that was properly filed to enforce a subpoena served while BBI was a nonparty. Code of Civil Procedure section 1987.1 expressly authorizes the Court, on a motion concerning a subpoena, to direct

compliance upon such terms and conditions as the Court determines appropriate. (Code Civ. Proc., § 1987.1, subd. (a).) Moreover, subsequent production of discovery after a motion to compel has been filed does not necessarily require the Court to treat the motion as moot. (*See Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–411; Cal. Rules of Court, rule 3.1348(a).)

The Court nevertheless declines Defendants’ request, first made in Reply, for a blanket determination that all objections newly asserted in BBI’s Amended Responses are waived under Code of Civil Procedure section 2031.300. Section 2031.300 governs a party’s failure to timely respond to a demand for inspection, copying, testing, or sampling; it does not govern the subpoena served on BBI when BBI was a nonparty. (Code Civ. Proc., § 2031.300, subd. (a).)

There remains, however, a legitimate issue concerning the clarity of BBI’s present compliance. BBI’s Amended Responses assert new objections, including objections based on trade secrets, confidential research, and proprietary commercial information, while simultaneously representing that responsive documents have been produced or do not exist. Defendants are entitled to know whether BBI is withholding any otherwise responsive documents based upon those objections. Additionally, BBI’s Amended Response to Request No. 2 appears to repeat Request No. 1 rather than respond to Request No. 2 as actually propounded.

Accordingly, within 10 days after service of written notice of the Court’s order, BBI shall serve a supplemental written response that:

1. correctly identifies and responds to Request No. 2;
2. states unequivocally whether any responsive documents to Request Nos. 1–17 are being withheld based upon any objection asserted in BBI’s Amended Responses; and
3. confirms that, except for any documents expressly identified as being withheld, BBI has produced all responsive, nonprivileged documents within its possession, custody, or control after a diligent search and reasonable inquiry.

To the extent Defendants seek an order compelling production of documents that BBI represents have already been produced or do not exist, the Motion is **DENIED AS MOOT**. The Court cannot compel production of documents that are not within BBI’s possession, custody, or control.

SANCTIONS

Defendants request monetary sanctions of \$1,540 against BBI. BBI contends that the sanctions request did not provide adequate notice.

The Court disagrees. Code of Civil Procedure section 2023.040 requires the notice of motion to identify the person or party against whom sanctions are sought, specify the type of sanction requested, and be supported by a memorandum and declaration establishing the amount sought. Here, Defendants’ Notice expressly sought monetary sanctions of \$1,540 against BBI, and the request was supported by the memorandum and counsel’s declaration identifying the claimed fees and costs. The sanctions request therefore provided adequate notice.

The fact that BBI produced documents after the Motion was filed does not preclude an award of sanctions. (Cal. Rules of Court, rule 3.1348(a).) Section 1987.2 also authorizes an award of reasonable expenses incurred

in making or opposing a motion under section 1987.1 where the motion was made or opposed without substantial justification. (Code Civ. Proc., § 1987.2, subd. (a).)

Defendants engaged in meet-and-confer efforts with BBI for several months before filing this Motion. During that period, BBI repeatedly represented that it was searching for and would produce responsive documents, yet no responsive production had been made when Defendants filed the Motion in August 2025. BBI did not serve the Amended Responses at issue until August 2026. Under these circumstances, an award of reasonable monetary sanctions is warranted notwithstanding BBI's subsequent production.

Considering the relief obtained, the subsequent production, and the work reasonably necessary to bring the Motion, the Court finds \$1,000 to be a reasonable sanction.

Accordingly, Defendants' request for monetary sanctions is **GRANTED IN PART**. BBI shall pay \$1,000 in monetary sanctions to counsel for Defendants within 30 days after service of written notice of the Court's order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 3

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY THIRD PARTY MODERN RAILWAY SYSTEMS

TENTATIVE RULING:

For the reasons stated below, Defendants Peninsula Corridor Joint Powers Board, TransitAmerica Services, Inc., and Herzog Transit Services, Inc. (collectively, “Defendants”) motions to compel third-party Modern Railway Systems (“MRS”) to comply with a subpoena for business records is **GRANTED IN PART**, as modified below. Defendants’ request for sanctions is **DENIED**.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

Defendants served MRS with the subject subpoena on April 4, 2025. (Walker Decl., ¶ 2, Ex. 1.) MRS served objections on April 25, 2025. (Id., ¶ 3, Ex. 2.) The parties began meeting and conferring on May 16, 2025. (Id., ¶ 4, Ex. 3.) Although the parties resolved several issues, disputes remain concerning Request Nos. 5 and 17. Defendants subsequently agreed to limit the requests to work performed during the five months preceding Plaintiff’s accident. (Walker Decl., ¶ 14, Ex. 11.)

LEGAL STANDARD

Discovery orders are reviewed for abuse of discretion because management of discovery lies within the sound discretion of the trial court. (*Manuel v. Superior Court* (2022) 82 Cal.App.5th 719, 727.)

A party may obtain discovery of nonprivileged matters relevant to the subject matter of the action if the information is admissible or reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) Discovery from a nonparty may be obtained through a deposition subpoena. (Id., §§ 2020.010, 2020.410.)

A party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought and may not rely on generalities. (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 223-224.) The